

County Commissioners Meeting July 7th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=cxSbn_wZG-U
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Delaware County Commissioners Meeting Report

Meeting Date: July 7, 2025

Location: Delaware County Building, Muncie, Indiana

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing on the Americans with Disabilities Act (ADA) Compliance Plan Update [00:01:16](#)
- **Summary of Discussion:**
 - The board opened a statutory public hearing to review and update the county's ADA Title II/VI compliance plan, noting the previous plan dated back to 2013.
 - Kylen Swack (Plan Commission) reported that a consulting firm has visited and assessed all but three county-owned facilities (including the fairgrounds, health department, county administration building, justice center, and EMS stations).
 - Public outreach includes an online survey accessible via QR code, physical resource sheets, and paper copies. A second public input meeting is tentatively scheduled for August 6th at the Emergency Management building.
 - **Action:** Motion to close the public hearing passed unanimously by roll call vote [00:04:58](#).

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the regular meeting of the Delaware County Commissioners on Monday, July 7, 2025, at 9:01 a.m. [00:00:29](#)
 - **Attendance:**
 - **Present:** Commissioner Rian, Commissioner Brand, and Commissioner Henry.
 - **Absent:** None.
 - **Presiding Officer:** Commissioner Brand (acting as President).
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening Pledge of Allegiance led by Ed [00:00:36](#).
 - **Employee of the Month:** Don Chambers announced monthly awards for Pam Jackson (county building) and Skip (head of maintenance at the jail), highlighting their exceptional dedication and community work [00:05:14](#).
 - **Approval of Minutes:**
 - Minutes from the June 2, 2025 meeting were approved with corrections by roll call vote [00:23:31](#).
 - Minutes from the June 16, 2025 meeting were approved with corrections by roll call vote [00:31:10](#).
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4. Substantive Business & Board Action

- [00:07:42](#) **Board Appointments (Health, Civic Center Authority, Fair Board):**
 - *Discussion:* The board noted ongoing vacancies on the Board of Health requiring Democratic appointments with specific professional backgrounds (medicine, law, engineering, etc.). Under Indiana Code 16-20-2-11, the current Board of Health is required to submit a list of five candidates. For the Civic Center Authority Board, terms for Cherish How, Scott Alexander, and David Hanower expire July 31; two have agreed to continue. The Fair Board has three current openings among six active members whose terms expire December 31.
 - *Action:* Discussion only; formal action deferred to the next meeting.
- [00:11:08](#) **Table Business: Solar Moratorium Update:**
 - *Sponsor / Presenter:* Commissioner Brand.
 - *Deliberation Summary:* The solar moratorium was temporarily removed from the table for an update. Brand noted interest from a clean energy company (Holene Clean Energy) in brownfield solar developments (5-10 megawatt range across three county brownfield sites). He also addressed recent public feedback pushing for a complete ban on solar, and clarified misconceptions regarding "prime farmland" maps, noting that FEMA flood maps, floodways, and USDA/NRCS

standards dictate true prime farm ground designations rather than general usable land maps.

- *Action:* Returned to the table by roll call vote [00:14:28](#).
- **00:15:08 IU Health Master Agreement Restructuring:**
 - *Sponsor / Presenter:* Commissioner Brand / Pam.
 - *Deliberation Summary:* The county currently pays a lump sum of approximately \$500,000 annually for employee/dependent access to the IU Health clinic, alongside roughly \$393,000 in additional costs (including ~ \$100,000 for on-site medication management). Due to low utilization (\$337 per employee visit based on 2024 data), the board reviewed an <U+00E0> la carte pricing structure (\$56.65 per visit) and proposed eliminating on-site medication management to allow prescriptions to be filled via retail pharmacies, enabling the county to capture pharmacy benefit rebates. Estimated total annual savings: ~\$300,000.
 - *Action:* Board directed staff to draft a revised contract incorporating the <U+00E0> la carte option and enhanced care access for the next meeting. Removed and re-tabled via roll call votes [00:15:10](#), [00:23:19](#).
- **00:24:15 Proposed EDIT (Economic Development Income Tax) Plan:**
 - *Sponsor / Presenter:* Commissioner Brand.
 - *Deliberation Summary:* Presented a new proposed three-year EDIT plan taking effect July 1. Key allocations include debt service (Project 1), jail Irax program (\$75,000/yr), incorporated town assistance (\$50,000 each for Selma, Albany, Daleville, etc.), Emoresco energy loan payments (~\$300,000/yr through 2030), Muncie animal control interlocal (\$75,000/yr), abandoned properties (\$50,000/yr), fairgrounds maintenance (\$50,000/yr plus \$42,500 for a roof/beam repair), IT software/infrastructure (\$150,000 for year one), ADA/Title VI compliance (\$100,000 for year one), Bridge 112 (\$150,000), county engineering support (\$40,000/yr), Cardinal Greenway study (\$25,000), and Youth Opportunity Center funding (frontloaded starting at \$80,000).
 - *Action:* Approved by Voice Vote / Passed Unanimously [00:31:00](#).
- **00:38:39 2025 JAG (Judge Edward Byrne Memorial Justice Assistance Grant) Award:**
 - *Sponsor / Presenter:* Captain Tony Johnson, Delaware County Sheriff's Office.
 - *Deliberation Summary:* The city of Muncie manages the JAG grant from the Department of Justice and shares an allocation of \$18,093 with the county for overtime patrols, primarily utilized during the county fair.
 - *Action:* Received for informational purposes.
- **00:45:10 Duke Energy Grant Approval:**
 - *Sponsor / Presenter:* John, Emergency Management Director.
 - *Deliberation Summary:* Emergency Management was awarded a \$3,000 grant from Duke Energy. The county attorney is coordinating the creation of a special deposit fund ordinance.

- *Action:* Informational update; pending fund establishment.
 - **00:46:48 Contract: American Structure Point (ADA Transition Plan):**
 - *Sponsor / Presenter:* Kylene Swack, Plan Commission.
 - *Deliberation Summary:* Following an RFP process, American Structure Point was selected by the steering committee as the lowest-cost bidder meeting project timelines. The fee is a "not to exceed" amount of \$60,200, offset by \$5,000 grants from both the Ball Brothers Foundation and the Community Foundation, with potential 80% federal reimbursement.
 - *Action:* Previously approved; update entered into the record **00:49:17**.
 - **00:49:50 Drainage Variance Request: Foundry Row (Cowan Road):**
 - *Sponsor / Presenter:* Alex Stevens, Kimley Horn / TWWG Development.
 - *Deliberation Summary:* Requested a drainage variance for a flat site on Cowan Road. To address zero-discharge storm water constraints and shallow cover limits, the project utilizes upgraded Class 4 reinforced concrete pipe, maximizes on-site detention, and verified downstream ditch capacity. Reviewed and recommended by VS Engineering (third-party reviewer) and county engineering.
 - *Action:* Approved by Voice Vote / Passed Unanimously **00:52:55**.
 - **00:53:21 Contract: ALC Building Automation System (911 Building):**
 - *Sponsor / Presenter:* Don Chambers, Superintendent of Maintenance.
 - *Deliberation Summary:* Requested \$7,250 to replace and upgrade remote HVAC/environmental controls for the 911 building, restoring remote monitoring capabilities. Funded via existing maintenance budgets.
 - *Action:* Approved by Voice Vote / Passed Unanimously **00:54:38**.
 - **00:45:52 Utility Billing Review: Constellation Gas Service:**
 - *Sponsor / Presenter:* Commissioner Brand.
 - *Deliberation Summary:* Addressed prior concerns regarding potential double-billing between Constellation (commodity hedging utility) and Centerpoint Energy. An independent expert review confirmed the contract is clean and provides market protection via a smart portfolio. To ensure absolute accuracy across meter numbers, the board considered a no-cost utility permission letter allowing Cost Stewardship Inc. to audit billing data.
 - *Action:* Approved by Voice Vote / Passed Unanimously **00:49:49**.
 - **00:59:58 Treatment Center Claim Payment (BW):**
 - *Sponsor / Presenter:* Commissioner Brand.
 - *Deliberation Summary:* Presented a claim payment to BW for the treatment center totaling \$673,724.81, to be paid from ARP interest funds.
 - *Action:* Approved by Voice Vote / Passed Unanimously **01:00:59**.
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5. Open Public Comment / Citizen Forum

- **01:12:11 Mr. Rome & Mackenzie Page** (1713 S. Franklin St. / property at 6701 E. Hickory Lane): Expressed severe drainage and crawl space flooding issues at an investment property in the Woodland neighborhood near Selma, noting previous highway department flushing had not resolved the underlying infrastructure problem tied to local utility district transitions.
- **01:16:42 Mr. Dan Barry** (2901 E. CR 800 North, Eaton): Objected to proposed changes to the solar ordinance, arguing that private farmland owners should be permitted to lease property to solar developers without county micromanagement.
- **01:18:52 Ms. Cheryl Dawson** (State Road 28 and Wheeling Ave.): Raised concerns regarding vague language in the transportation improvement plan regarding former railroad right-of-way land, emphasizing that property owners have actively farmed and utilized these contiguous parcels for 45 years.
- **01:22:30 Mr. Rick Yenser** (Resident and Author): Criticized the lack of public notice and review time for the EDIT plan, cautioned against relying heavily on renewable energy subsidies given shifting federal policies, and raised concerns regarding data center resource demands.
- **01:25:51 Ms. Cheryl Swingley** (3908 N. Vienna Woods Dr.): Criticized the protracted solar moratorium, asserting that Delaware County is falling behind neighboring counties (Blackford, Jay, Randolph) in renewable energy adoption, and argued that local land qualifies as prime farmland under state law.
- **01:29:12 Ms. Linda Hansen** (1400 W. North St., League of Women Voters): Urged the commissioners to respect prior public testimony gathered during extensive solar hearings and return to a workable solar ordinance.
- **01:31:01 Representative Sue Errington** (House District 34): Shared legislative fiscal impact data regarding Senate Bill 1, projecting substantial revenue losses for local government units (reaching \$3.3 million for Muncie by 2028), and urged the board to explore renewable energy as an expanded tax base to offset budget cuts.

6. Administrative Updates & Adjournment

- **Claims & Financial Approvals:**
 - Regular Claims (\$2,564,515.82): Approved (Commissioners Rian and Henry voting Yes; Commissioner Brand voting No due to lack of adequate explanations for credit card and vehicle repair expenses) **01:09:36**.
 - ARP Claims (\$44,739.00): Approved by Voice Vote / Passed Unanimously **01:09:49**.
 - Spring Settlement Claims (\$62,167,868.07): Approved by Voice Vote / Passed Unanimously **01:10:09**.
 - Payroll (\$1,042,787.58): Approved by Voice Vote / Passed Unanimously **01:11:52**.

- **Staff & Board Announcements:**
 - **Sheriff Tony Skinner:** Reported successful annual DOC and U.S. Marshals inspections of the jail with zero deficiencies.
 - **Emergency Management (John):** Noted the commencement of a countywide commodity flow study through July, with final reports expected in September.
 - **Commissioner Brand:** Announced a public meeting with Baker Tilly regarding Senate Roll Act 1 following the July 22 county council meeting, and highlighted new state disclosure requirements for appointed board authorities under HEA 1509.
 - **Commissioner Rian:** Noted county fair events running July 7<U+2013>16, featuring a special Community Day on July 14.
 - **Adjournment:** The meeting moved into recess by unanimous roll call vote [01:43:18](#).
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